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APPLICATION NO.	FILING DATE	FIRST NAMED INVENTOR	ATTORNEY DOCKET NO.	CONFIRMATION NO.
13/364,717	02/02/2012	Ganga Raju GOKARAJU	LIX 3049	8384
30868 7590 01/08/2013 KRAMER & AMADO, P.C. 330 JOHN CARLYLE STREET 3RD FLOOR ALEXANDRIA, VA 22314			EXAMINER CLARK, AMY LYNN	
			ART UNIT 1655	PAPER NUMBER
			NOTIFICATION DATE: 01/08/2013	DELIVERY MODE ELECTRONIC

Please find below and/or attached an Office communication concerning this application or proceeding.

The time period for reply, if any, is set in the attached communication.

Notice of the Office communication was sent electronically on above-indicated "Notification Date" to the following e-mail address(es):

mail@krameramado.com

Office Action Summary

Application No.

13/364,717

Applicant(s)

GOKARAJU ET AL.

Examiner

Amy L. Clark

Art Unit

1655

-- The MAILING DATE of this communication appears on the cover sheet with the correspondence address --

Period for Reply

A SHORTENED STATUTORY PERIOD FOR REPLY IS SET TO EXPIRE 3 MONTH(S) OR THIRTY (30) DAYS, WHICHEVER IS LONGER, FROM THE MAILING DATE OF THIS COMMUNICATION.

Extensions of time may be available under the provisions of 37 CFR 1.136(a). In no event, however, may a reply be timely filed after SIX (6) MONTHS from the mailing date of this communication.

If NO period for reply is specified above, the maximum statutory period will apply and will expire SIX (6) MONTHS from the mailing date of this communication.

Failure to reply within the set or extended period for reply will, by statute, cause the application to become ABANDONED (35 U.S.C. § 133).

Any reply received by the Office later than three months after the mailing date of this communication, even if timely filed, may reduce any earned patent term adjustment. See 37 CFR 1.704(b).

Status

- 1) ☒ Responsive to communication(s) filed on 10 October 2012.
- 2a) ☐ This action is **FINAL**. 2b) ☒ This action is non-final.
- 3) ☐ An election was made by the applicant in response to a restriction requirement set forth during the interview on ____; the restriction requirement and election have been incorporated into this action.
- 4) ☐ Since this application is in condition for allowance except for formal matters, prosecution as to the merits is closed in accordance with the practice under *Ex parte Quayle*, 1935 C.D. 11, 453 O.G. 213.

Disposition of Claims

- 5) ☒ Claim(s) 1-43 is/are pending in the application.
- 5a) Of the above claim(s) 22-26,28-36 and 43 is/are withdrawn from consideration.
- 6) ☐ Claim(s) ____ is/are allowed.
- 7) ☒ Claim(s) 1-21,27 and 37-42 is/are rejected.
- 8) ☐ Claim(s) ____ is/are objected to.
- 9) ☐ Claim(s) ____ are subject to restriction and/or election requirement.

* If any claims have been determined allowable, you may be eligible to benefit from the **Patent Prosecution Highway** program at a participating intellectual property office for the corresponding application. For more information, please see http://www.uspto.gov/patents/init_events/pph/index.jsp or send an inquiry to PPHfeedback@uspto.gov.

Application Papers

- 10) ☐ The specification is objected to by the Examiner.
- 11) ☒ The drawing(s) filed on 02 February 2012 is/are: a) ☒ accepted or b) ☐ objected to by the Examiner.
- Applicant may not request that any objection to the drawing(s) be held in abeyance. See 37 CFR 1.85(a).
- Replacement drawing sheet(s) including the correction is required if the drawing(s) is objected to. See 37 CFR 1.121(d).

Priority under 35 U.S.C. § 119

- 12) ☒ Acknowledgment is made of a claim for foreign priority under 35 U.S.C. § 119(a)-(d) or (f).
- a) ☒ All b) ☐ Some * c) ☐ None of:
1. ☒ Certified copies of the priority documents have been received.
2. ☐ Certified copies of the priority documents have been received in Application No. ____.
3. ☐ Copies of the certified copies of the priority documents have been received in this National Stage application from the International Bureau (PCT Rule 17.2(a)).

* See the attached detailed Office action for a list of the certified copies not received.

Attachment(s)

- 1) ☒ Notice of References Cited (PTO-892)
- 2) ☒ Information Disclosure Statement(s) (PTO/SB/08)
Paper No(s)/Mail Date 02/15/2012
- 3) ☐ Interview Summary (PTO-413)
Paper No(s)/Mail Date. ____
- 4) ☐ Other: ____

DETAILED ACTION

Election/Restrictions

Applicant's election of Group I, claims 1-21, 27 and 37-42 in the reply filed on 10/10/2012 is acknowledged. Because applicant did not distinctly and specifically point out the supposed errors in the restriction requirement, the election has been treated as an election without traverse (MPEP § 818.03(a)).

Claims 22-26, 28-36 and 43 are withdrawn from further consideration pursuant to 37 CFR 1.142(b) as being drawn to a nonelected invention, there being no allowable generic or linking claim. Election was made **without** traverse in the reply filed on 10/10/2012.

Claims 1-21, 27 and 37-42 are currently being examined on the merits.

Claim Rejections - 35 USC § 102

The following is a quotation of the appropriate paragraphs of 35 U.S.C. 102 that form the basis for the rejections under this section made in this Office action:

A person shall be entitled to a patent unless

(b) the invention was patented or described in a printed publication in this or a foreign country or in public use or on sale in this country, more than one year prior to the date of application for patent in the United States.

Claims 1, 11, 14-17, 20, 21 and 41 are rejected under 35 U.S.C. 102(b) as being anticipated by Ghosh et al. (Reference 2 under NPI on Applicant's IDS dated 02/15/2012).

Ghosh teaches a method of observing the effect of an aqueous suspension of a water-soluble portion of the ethanol extract of *Ficus hispida* comprising first extracting *Ficus hispida*

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bark with ethanol and obtaining an aqueous suspension of a water-soluble portion of the ethanol extract, and administering the ethanol extract to diabetic rats.

The method of using the referenced composition is not expressly taught as a method of treating atherosclerosis or obesity or ameliorating the expression or production of at least one biological marker protein or other instantly claimed mechanisms. However, the instantly claimed process is a **one-step process** of administering an extract from *Ficus hispida*. Thus, the functional effects are inherent to the method of using the composition taught by Ghosh.

Therefore, the reference anticipates the instantly claimed invention.

Claims 11-13, 17-21, 41 and 42 are rejected under 35 U.S.C. 102(b) as being anticipated by Mandal et al. (U).

Mandal teaches a method of obtaining a methanol extract of *Ficus hispida* leaves and administering the methanol extract to rats.

The method of using the referenced composition is not expressly taught as a method of treating atherosclerosis or obesity or ameliorating the expression or production of at least one biological marker protein or other instantly claimed mechanisms. However, the instantly claimed process is a **one-step process** of administering a methanol extract of *Ficus hispida* leaves. Thus, the functional effects are inherent to the method of using the composition taught by Mandal.

Mandal also does not expressly teach that the extract is obtained by extraction with ethyl acetate. However, it should be noted that the claims constitute Product-by-Process type claims. In Product-by-Process type claims, the process of producing the product is given no patentable

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weight since it does not impart novelty to a product when the product is taught by the prior art. See *In re Thorpe*, 227 USPQ 964 (CAFC 1985); *In re Marosi*, 218 USPQ 289, 292-293 (CAFC 1983) and *In re Brown*, 173 USPQ 685 (CCPA 1972). Consequently, even if a particular process used to prepare a product is novel and unobvious over the prior art, the product *per se*, even when limited to the particular process, is unpatentable over the same product taught in by the prior art. See *In re King*, 107 F.2d 618, 620, 43 USPQ 400, 402 (CCPA 1939); *In re Merz*, 97 F.2d 599, 601, 38 USPQ 143-145 (CCPA 1938); *In re Bergy*, 563 F.2d 1031, 1035, 195 USPQ 344, 348 (CCPA 1977) *vacated* 438 US 902 (1978); and *United States v. Ciba-Geigy Corp.*, 508 F. Supp. 1157, 1171, 211 USPQ 529, 543 (DNJ 1979). Finally, since the Patent Office does not have the facilities for examining and comparing Applicant's composition with the compositions of the prior art reference, the burden is upon Applicant to show a distinction between the material, structural and functional characteristics of the claimed composition and the composition of the prior art. See *In re Best*, 562 F.2d 1252, 195 USPQ 430 (CCPA 1977).

Therefore, the reference anticipates the instantly claimed invention.

Claim Rejections - 35 USC § 103

The following is a quotation of 35 U.S.C. 103(a) which forms the basis for all obviousness rejections set forth in this Office action:

(a) A patent may not be obtained though the invention is not identically disclosed or described as set forth in section 102 of this title, if the differences between the subject matter sought to be patented and the prior art are such that the subject matter as a whole would have been obvious at the time the invention was made to a person having ordinary skill in the art to which said subject matter pertains. Patentability shall not be negated by the manner in which the invention was made.

This application currently names joint inventors. In considering patentability of the claims under 35 U.S.C. 103(a), the examiner presumes that the subject matter of the various

claims was commonly owned at the time any inventions covered therein were made absent any evidence to the contrary. Applicant is advised of the obligation under 37 C.F.R. 1.56 to point out the inventor and invention dates of each claim that was not commonly owned at the time a later invention was made in order for the examiner to consider the applicability of 35 U.S.C. 103(c) and potential 35 U.S.C. 102(e), (f) or (g) prior art under 35 U.S.C. 103(a).

Claims 1-21, 27 and 37-42 are rejected under 35 U.S.C. 103(a) as being unpatentable over Rasayoga Segara (V).

Rasayoga Segara teaches formulating a decoction (please note that a decoction can contain alcohol, particularly methanol or ethanol) composition comprising *Ficus hispida* fruit, combining with water or any other specified liquid and administering orally to treat obesity and diseases with vata predominance (please note that diabetes is a type of disease with vata predominance).

The method of using the referenced composition is not expressly taught as a method of treating atherosclerosis or diabetes or ameliorating the expression or production of at least one biological marker protein or other instantly claimed mechanisms. However, the instantly claimed process is a one-step process of administering an extract of *Ficus hispida* fruit. Thus, the functional effects are inherent to the method of using the composition taught by Rasayoga Segara.

Rasayoga Segara also does not expressly teach that the extract is obtained by extraction with ethyl acetate. However, it should be noted that the claims constitute Product-by-Process type claims. In Product-by-Process type claims, the process of producing the product is given no patentable weight since it does not impart novelty to a product when the product is taught by the

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prior art. See *In re Thorpe*, 227 USPQ 964 (CAFC 1985); *In re Marosi*, 218 USPQ 289, 292-293 (CAFC 1983) and *In re Brown*, 173 USPQ 685 (CCPA 1972). Consequently, even if a particular process used to prepare a product is novel and unobvious over the prior art, the product *per se*, even when limited to the particular process, is unpatentable over the same product taught in by the prior art. See *In re King*, 107 F.2d 618, 620, 43 USPQ 400, 402 (CCPA 1939); *In re Merz*, 97 F.2d 599, 601, 38 USPQ 143-145 (CCPA 1938); *In re Bergy*, 563 F.2d 1031, 1035, 195 USPQ 344, 348 (CCPA 1977) *vacated* 438 US 902 (1978); and *United States v. Ciba-Geigy Corp.*, 508 F. Supp. 1157, 1171, 211 USPQ 529, 543 (DNJ 1979). Finally, since the Patent Office does not have the facilities for examining and comparing Applicant's composition with the compositions of the prior art reference, the burden is upon Applicant to show a distinction between the material, structural and functional characteristics of the claimed composition and the composition of the prior art. See *In re Best*, 562 F.2d 1252, 195 USPQ 430 (CCPA 1977).

It would have been obvious to modify the solvent used in the method taught by Rasayoga Segara and administering the composition taught by Rasayoga Segara to a subject with obesity or diabetes because at the time the invention was made, it was known that a decoction of *Ficus hispida* fruit could be used for treating obesity or diabetes based upon the teachings Rasayoga Segara.

Thus, an artisan of ordinary skill would reasonably expect that administering a composition comprising a decoction of *Ficus hispida* fruit, wherein the decoction can be obtained with an alcohol, would be even more effective for treating obesity or diabetes. This reasonable expectation of success would motivate the artisan to use an alcohol extract of *Ficus hispida* fruit for treating obesity or diabetes based upon the teachings of Rasayoga Segara.

Based upon the beneficial teachings of the cited references, the skill of one of ordinary skill in the art, and absent evidence to the contrary, there would have been a reasonable expectation of success to result in the claimed invention.

Accordingly, the claimed invention was prima facie obvious to one of ordinary skill in the art at the time the invention was made, especially in the absence of evidence to the contrary.

Conclusion

No claims are allowed.

Any inquiry concerning this communication or earlier communications from the examiner should be directed to Amy L. Clark whose telephone number is (571)272-1310. The examiner can normally be reached on Monday to Friday 7 am to 3:30 pm.

If attempts to reach the examiner by telephone are unsuccessful, the examiner's supervisor, Terry McKelvey can be reached on (571)272-0775. The fax phone number for the organization where this application or proceeding is assigned is 571-273-8300.



Notice of References Cited	Application/Control No. 13/364,717	Applicant(s)/Patent Under Reexamination GOKARAJU ET AL.	
	Examiner Amy L. Clark	Art Unit 1655	Page 1 of 1

U.S. PATENT DOCUMENTS

*		Document Number Country Code-Number-Kind Code	Date MM-YYYY	Name	Classification
	A	US-			
	B	US-			
	C	US-			
	D	US-			
	E	US-			
	F	US-			
	G	US-			
	H	US-			
	I	US-			
	J	US-			
	K	US-			
	L	US-			
	M	US-			

FOREIGN PATENT DOCUMENTS

*		Document Number Country Code-Number-Kind Code	Date MM-YYYY	Country	Name	Classification
	N					
	O					
	P					
	Q					
	R					
	S					
	T					

NON-PATENT DOCUMENTS

*		Include as applicable: Author, Title Date, Publisher, Edition or Volume, Pertinent Pages)
	U	Mandal et al. Fitoterapia 73 (2002) 663-667.
	V	Rasayoga Sagar - Compiled and Translated by Vaidya Patita Hariprapanna J. Vol.-II : Krishnadas Academy, Varanasi, Edn. Reprint, 1998. [This book contains back references from 1000 B.C.to 20th century]. Pages 305-306 (English translation from TKDL).
	W	
	X	

*A copy of this reference is not being furnished with this Office action. (See MPEP § 707.02(a).)
Dates in MM-YYYY format are publication dates. Classifications may be US or foreign.

Search Notes 	Application/Control No. 13364717	Applicant(s)/Patent Under Reexamination GOKARAJU ET AL.
	Examiner AMY L CLARK	Art Unit 1655

SEARCHED			
Class	Subclass	Date	Examiner
NONE	NONE		

SEARCH NOTES		
Search Notes	Date	Examiner
EAST-See Search Notes	12/26/2012	ALC
Google search for terms including ficus hispida	12/26/2012	ALC
TKDL search for terms including ficus hispida	12/26/2012	ALC
All Inventors Names Searched in PALM	12/26/2012	ALC
All Inventors Names Searched	12/26/2012	ALC
IDS Search Performed	12/26/2012	ALC

INTERFERENCE SEARCH			
Class	Subclass	Date	Examiner
NONE	NONE		

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